

SYNTHETIC APPELLATE DOCKET — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

RECORD-COMPLETE AND BRIEFING ORDER

Certified record accepted

The clerk has reviewed the district court's January 23, 2026 certificate and the transmitted docket in *Leora Benton v. Blue Cedar Compliance, Inc.*, No. SYN-CA4-26-CV-4101. The appellate record is recorded complete as of February 20, 2026. It consists of the thirty-seven district record documents identified in the certificate and the continuously labeled pages JA1 through JA262. The parties reported no missing transmitted filing within the period stated in the docketing notice.

This order confirms record receipt and advances the appeal to briefing. It does not admit excluded material for a purpose the district court disallowed. The Wynn declaration at JA194–JA195 remains available to review the December 1 exclusion ruling, while the merits appeal proceeds on the evidence the district court treated as admitted. Any brief citing the declaration shall state the purpose of the citation. No party may characterize record certification as a decision concerning truth, weight, waiver, preservation, or the standard of review.

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Principal-brief schedule

Appellant's opening brief is due March 16, 2026. Appellee's response brief is due April 15, 2026, thirty days after the opening brief date. An optional reply brief may be filed within the time allowed by Rule 31 unless appellant gives notice that no reply will be filed. A motion to extend a briefing date must be filed before the affected deadline and must show good cause. The parties shall not rely on informal agreement to change a court deadline.

Each principal brief shall identify the issues presented, state the applicable standards of review, cite the exact JA pages supporting material factual assertions, and distinguish the admitted merits record from material preserved only for review of the exclusion ruling. The opening and response briefs shall address both the Rule 37 ruling and the summary-judgment ruling. The clerk will record briefing complete only after both required principal briefs are accepted and the status of any reply is known.

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Submission and service

After briefing is complete, the court will determine whether to schedule oral argument or submit the appeal on the briefs under Rule 34. No argument date is set by this order. A later calendar notice, if entered, will identify the date, place, time allocation, and any additional directions. The parties shall remain prepared to address jurisdiction, the distinction between review of an exclusion ruling and use of excluded material on the merits, the Rule 56 inference standard, and the relief that follows from each possible ruling.

Electronic filing constitutes service on registered counsel. Counsel shall use No. SYN-CA4-26-CV-4101 and the full caption on all submissions. The clerk shall send this order to counsel for Benton and Blue Cedar on February 20, 2026. By direction of the court, the record is complete, the opened stage is closed, and briefing may proceed under the dates stated above.